

1 ENGROSSED SENATE
2 BILL NO. 1303

By: Daniels of the Senate

3 and

4 Lepak of the House

5
6 An Act relating to workers' compensation; amending
7 85A O.S. 2021, Section 124, which relates to
8 transfers from Workers' Compensation Court;
9 transferring certain property and records; updating
10 statutory references; updating statutory language;
11 repealing 85A O.S. 2021, Section 121, which relates
12 to the Advisory Council on Workers' Compensation;
13 providing an effective date; and declaring an
14 emergency.

15
16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 85A O.S. 2021, Section 124, is
18 amended to read as follows:

19 Section 124. A. 1. All unexpended funds, assets, property,
20 records, personnel and any outstanding financial obligations and
21 encumbrances of the Workers' Compensation Court before February 1,
22 2014, are hereby transferred to the Oklahoma Workers' Compensation
23 Commission. The personnel transferred shall retain leave, sick and
24 annual time earned and any retirement and longevity benefits ~~which~~
that have accrued during their employment with the state. The
salaries of employees who are transferred shall not be reduced as a
direct and immediate result of the transfer. There shall be no
reduction-in-force as a result of the transfer.

1 2. Any unexpended funds, including interest thereon, held by
2 the State Treasurer in an interest-bearing division special account
3 maintained by the Workers' Compensation Court before February 1,
4 2014, from which a self-insured employer's workers' compensation
5 obligations are paid following nonpayment by the self-insured
6 employer for any reason, including insolvency, shall be transferred
7 to the Oklahoma Workers' Compensation Commission. Such funds shall
8 be expended by the Commission only for the purpose of paying
9 workers' compensation obligations of the self-insured employer, and
10 costs related to the administration of such obligations, to the
11 extent of the availability of such funds.

12 B. 1. All unexpended funds, assets, property, and records and
13 any outstanding financial obligations and encumbrances of the
14 Workers' Compensation ~~Self-insurance~~ Self-Insurance Guaranty Fund
15 Board before February 1, 2014, are hereby transferred to the Self-
16 insurance Guaranty Fund Board created in the Administrative Workers'
17 Compensation Act.

18 2. Any unexpended funds, including interest thereon, held by
19 the State Treasurer in the Workers' Compensation ~~Self-insurance~~
20 Self-Insurance Guaranty Fund before February 1, 2014, shall be
21 transferred to the Self-insurance Guaranty Fund Board created by the
22 Administrative Workers' Compensation Act. Such funds shall be
23 expended by the Board only as authorized in the Administrative
24 Workers' Compensation Act.

1 3. Any claim existing or action or proceeding pending by,
2 against or before the Workers' Compensation ~~Self-insurance~~ Self-
3 Insurance Guaranty Fund Board when the Board ceased existence may be
4 continued as if the Self-insurance Guaranty Fund Board was not
5 created, or the Self-insurance Guaranty Fund Board may be
6 substituted in the matter. The Self-insurance Guaranty Fund Board
7 shall be responsible and liable for all liabilities and obligations
8 of the Workers' Compensation ~~Self-insurance~~ Self-Insurance Guaranty
9 Fund Board.

10 C. All property and records of the Physician Advisory Committee
11 before February 1, 2014, are hereby transferred to the Physician
12 Advisory Committee created in the Administrative Workers'
13 Compensation Act.

14 D. All property and records of the Advisory Council on Workers'
15 Compensation before ~~February 1, 2014,~~ July 1, 2026, are hereby
16 transferred to the ~~Advisory Council on Workers' Compensation created~~
17 ~~in the Administrative Workers' Compensation Act~~ Commission.

18 E. All unexpended funds, assets, property, records, personnel
19 and any outstanding financial obligations and encumbrances of the
20 Multiple Injury Trust Fund before February 1, 2014, are hereby
21 transferred to the Multiple Injury Trust Fund created in the
22 Administrative Workers' Compensation Act. The personnel transferred
23 shall retain leave, sick and annual time earned and any retirement
24 and longevity benefits ~~which~~ that have accrued during their

1 employment with the state. The salaries of employees who are
2 transferred shall not be reduced as a direct and immediate result of
3 the transfer. There shall be no reduction-in-force as a result of
4 the transfer.

5 F. The Director of the Office of Management and Enterprise
6 Services is hereby directed to coordinate the transfer of funds,
7 allotments, purchase orders, outstanding financial obligations or
8 encumbrances provided for in subsections A and E of this section,
9 and the transfer of funds, outstanding financial obligations or
10 encumbrances provided for in subsection B of this section.

11 SECTION 2. REPEALER 85A O.S. 2021, Section 121, is
12 hereby repealed.

13 SECTION 3. This act shall become effective July 1, 2026.

14 SECTION 4. It being immediately necessary for the preservation
15 of the public peace, health or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

18
19
20
21
22
23
24

1 Passed the Senate the 10th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives